

Youngstown Business Incubator

241 W Federal St
Youngstown, OH 44503
ybi.org

AMENDMENT

09/15/2026
AM-LTM-PROJ88 · 2025

PROPOSED — NOT A CLAIM

Nothing here is billed until NCDMM accepts it in writing.

NOT CERTIFIED

A rate stands and nobody has put their name to it.

TO

NCDMM / America Makes
6800 Innovation Blvd
Johnstown, PA 15904

AWARD

AM-LTM-PROJ88

Last-Tactical-Mile

WHAT IS BEING PROPOSED

Youngstown Business Incubator proposes to reissue the 2025 invoices listed overleaf on a negotiated indirect cost rate. The work, the period of performance and the deliverables are unchanged. What changes is the basis on which indirect cost is claimed.

AS BILLED

10% de minimis under 2 CFR 200.414(f) — the basis being restated

AS PROPOSED

INDIRECT_COMBINED at the negotiated rate on MTDC.

THE RATE

INDIRECT_COMBINED at 43.99% on MTDC. The rate is computed only from classifications sealed before it, and it carries that seal: 60fb3f4b52219514... The sealing is what lets this be checked rather than taken on trust — the judgments behind the rate were fixed and hashed before any rate existed, so none of them was chosen to produce it.

AUTHORITY

“A change in the scope of work that increases cost requires the parties to amend the SOW and budget by written agreement; a disagreement after 30 days goes to binding arbitration”

— §4.4 Expense Changes; §4.7

This memorandum is that request. No restated invoice is a claim against the award until NCDMM incorporates the change in a written modification, and none has been submitted for payment.

Both directions are shown separately on the acceptance form. Where this award over-collected, YBI is proposing to give that money back; where it under-recovered, YBI is asking for it. These are two conversations and a single net figure would hide both.

On this award the rebuild against the cost record shows 107,683.52 of indirect cost supported by 2025 and not recovered. That is what is being asked for.

WHAT IS NOT FINISHED

- Every cost judged — Every group carries a position. 757 of 757 are working positions a script proposed and nobody has adopted — classified, and not yet a judgment.
- Every square foot accounted for — Needs the square footage per building, and what each part is used for. Until it lands the 200.465 carve-out cannot be computed at all, and every dollar of tenant and vacant occupancy cost sits in the federal pool.
- Every asset's funding source — 0.0% of the asset cost carries a funding source, so 200.436(b) cannot be answered on the depreciation the rest of it holds. It is the one column the schedule does not carry and 200.313(d)(1) requires.
- The paper behind the judgments — 0 of 363 federally chargeable judgments cite a document, of 757 live. Attaching is not citing: a citation is why the judgment was made, and it is what VERIFIED requires.
- The rate certified — A rate stands and nobody has put their name to it. Nothing is blocked by this — an invoice or a workbook produced now simply carries NOT CERTIFIED.